

Bijoy Pd.Sah vs Smt.Urmila Devi on 10 July, 2008

Author: Mihir Kumar Jha

Bench: Mihir Kumar Jha

IN THE HIGH COURT OF JUDICATURE AT PATNA
C.R. No.366 of 2006
BIJOY PD.SAH
Versus
SMT.URMILA DEVI

7 10/7/2008

Heard counsel for the petitioner.

Petitioner is aggrieved by the order dated 12.9.2005, whereby and whereunder, the court below has held matrimonial suit, i.e, Marriage Case No. 85 of 2004 to be not maintainable as it was barred by limitation.

Counsel for the petitioner would submit that as a matter of fact under the Hindu Marriage Act there is no period prescribed for such limitation of filing of the suit and therefore the court below has committed an apparent error of jurisdiction in dismissing the suit in question on limitation.

This Court would find that in section 23 of the Act there is sufficient indication that the court has to be satisfied that there has not been any unnecessary and improper delay in institution of the proceeding. As to what would be unnecessary and improper delay needs be explained in the plaint itself. This Court has looked into the plaint filed by the petitioner from which it appears that even though cause of action has been stated to have taken place some 24 years back with specific allegation that his wife-opposite party was living in adultery and had deserted the petitioner for continuously for last 25 years, there is not a word in the plaint explaining such grossly delayed in institution of the proceeding seeking divorce from the wife-opposite party.

In that view of the matter, the impugned order holding that the suit was barred by limitation seems to be correct in view of the restrictions imposed in section 23 (d) of the Hindu Marriage Act.

There being thus no jurisdictional error in the impugned order, this civil revision application is devoid of any merit and is accordingly dismissed.

(Mihir Kumar Jha, J.) Abhay Kumar